

TENTATIVE RULING(S) FOR AUGUST 5, 2026

Department S37 – Judge Winston Keh

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CIVSB2521996

DOE v. County

TENTATIVE RULING(S):

Before the Court is Defendant County of San Bernardino's Demurrer to Plaintiff's Complaint. Plaintiff opposes and Defendant replies.

Meet and Confer

Code of Civil Procedure sections 430.41 and 435.5 require, before filing a demurrer or motion to strike, the moving party must meet and confer in person, by telephone, by video conference with the party who filed the pleading in order to determine if an agreement can be reached to resolve the objections to the pleading. The parties must meet and confer at least five days before the responsive pleading is due, but if they are unable to do so, an automatic 30-day extension of time within which to file the responsive pleading will be granted by filing and serving a declaration on or before the date the response would be

due, stating a good faith attempt was made to meet and confer. The moving party then must file and serve a meet and confer declaration with the motion stating either the means by which the parties met and conferred, or the party who filed the pleading failed to respond to the meet and confer request. (Code Civ. Proc., §§430.41(a), 435.5(a).)

Defense attorney Chandler A. Parker declares he emailed and left a voicemail for opposing counsel prior to filing the demurrer but received no response. (Parker Decl., ¶¶3-4.) Counsel therefore did not properly meet and confer, but the fault lies with opposing party Plaintiff's counsel rather than with the moving party. While this might typically justify a continuance to allow for proper meet and confer efforts, in this case the Court elects to address the merits of the demurrer because it was filed over 10 months ago on October 9, 2025, and has already been substantially delayed. However, the Court would like to hear from Plaintiff's counsel why he or she failed to respond to Defendant's invitation to meet and confer.

Analysis

First, second, and third causes of action under CANRA. Defendant first argues Plaintiff's complaint fails to allege sufficient facts to establish proximate cause. This argument appears to apply to the first three causes of action alleging CANRA violations.

"Proximate cause "is that cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produced the injury...and without which such result would not have occurred.' [Citation.]" (*Fleming v. State of California* (1995) 34 Cal.App.4th 1378, 1384.)

Proximate cause has two aspects, the first being cause in fact or "but for" causation. (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 352.) "An act is a cause in fact if it is a necessary antecedent of an event." (*Ibid.*, citation omitted.)

The second aspect of proximate cause "focuses on public policy considerations. Because the purported [factual] causes of an event may be traced back to the dawn of humanity, the law has imposed additional 'limitations on liability other than simple causality.' [Citation.] 'These additional limitations are related not only to the degree of connection between the conduct and the injury, but also with public policy.' [Citation.] Thus, 'proximate cause "is ordinarily concerned, not with the fact of causation, but with the various considerations of policy that limit an actor's responsibility for the consequences of his conduct.'" [Citation.] [Citation.] As Witkin puts it, "[t]he doctrine of proximate cause limits liability; i.e., in certain situations where the defendant's conduct is an actual cause of the harm, the defendant will nevertheless be absolved because of the manner in which the injury occurred. ... Rules of legal cause ... operate to relieve the defendant whose conduct is a cause in fact of the injury, where it would be considered unjust to hold him or her legally responsible." (6 Witkin, Summary of Cal. Law, *supra*, Torts, § 1186, p. 553.)

“Ordinarily, proximate cause is a question of fact which cannot be decided as a matter of law from the allegations of a complaint. ... Nevertheless, where the facts are such that the only reasonable conclusion is an absence of causation, the question is one of law, not of fact.” [Citations.]

(*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 353.)

In *State Dept. of State Hospitals*, the California Supreme Court noted a line of cases decided at the pleading stage each “held that proximate cause was not established when a governmental defendant’s failure to act allegedly caused injury, but the chain of causation included discretionary determinations for which no liability could be imposed.” (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 353-357.)

Cases discussed included:

- *Whitcombe v. County of Yolo* (1977) 73 Cal.App.3d 698 – A probationer assaulted the plaintiffs after being released on bail. The Court of Appeal sustained a demurrer against governmental entities accused of breaching a mandatory duty to investigate. The Court noted any decision to grant or revoke probation were left to the trial court’s discretion and was not bound by the probation officer’s report or recommendation, breaking the chain of proximate causation. (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 353-354, citing *Whitcombe, supra*, 73 Cal.App.3d at pp. 702-703, 707-708.)
- *State of California v. Superior Court* (1984) 150 Cal.App.3d 848 – The plaintiffs alleged they were defrauded by a property manager licensed by the Department of Real Estate and sued the Real Estate Commissioner for breaching his mandatory duty to investigate a prior fraud complaint against the manager. The Court of Appeal held even if the Commissioner properly investigated, there was no reasonable assurance sanctions would have prevented Plaintiff’s subsequent losses. (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 354-355, citing *State of California, supra*, 150 Cal.App.3d at pp. 852, 855-859.)
- *Fleming v. State of California* (1995) 34 Cal.App.4th 1378 – After a parolee committed murder, the victim’s family alleged the killer’s parole officer breached a mandatory duty to arrest him for a parole violation. The Court of Appeal held arrest without incarceration would not have necessarily prevented the crime, and incarceration required additional procedural steps that would have broken the causal chain. (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 355, citing *Fleming, supra*, 34 Cal.App.4th at pp. 1381-1382, 1384.)

Defendant argues the scheme envisioned by CANRA requires an investigation that may or may not lead to a child’s removal from a dangerous situation, depending on how discretion is exercised by the empowered agencies and personnel as well as the courts.

Under CANRA, mandated reporters, including peace officers, who know or reasonably suspect child abuse or neglect have a duty to report the matter as specified. (*Kassey S. v. City of Turlock* (2013)

212 Cal.App.4th 1276, 1280.) “If the police officer breaches that duty, the police officer and his or her municipal employer are subject to liability for any injuries proximately caused by the breach.” (*Ibid.*)

CANRA imposes on law enforcement agencies the duty to cross-report reports they receive to other agencies. (§ 11166, subd. (k).) CANRA further contemplates that these agencies will, pursuant to their “existing duties,” investigate reported incidents of suspected child abuse, and that they will notify other agencies when they commence their investigation. (§ 11166.3, subd. (a); cf. *Planned Parenthood, supra*, 181 Cal. App. 3d at p. 259 [a “child protective agency receiving the initial child abuse report then conducts an investigation”].) Oftentimes, reporting by third parties is the only way the proper authorities become aware of an incident of child abuse. (Transcript of Assem. Public Hearing, *supra*, p. 17.) In this way, the statutory scheme sets up “a dichotomy between reporter and reportee.”

(*B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 190.)

Public employees such as social workers are provided immunity when their acts or omissions involve the exercise of discretion. (*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1285.) “Immunity ‘applies even to “lousy” decisions in which the worker abuses his or her discretion, including decisions based on “woefully inadequate information.” [Citation.]’ [Citation.] Courts have determined immunity applies to such decisions no matter how horrible the outcome, including a situation where a social worker returned a child to a father, who stabbed the child in the heart and lungs shortly thereafter.” (*Ibid.*)

Defendant argues liability on Plaintiff’s CANRA claims is predicated on the allegation that a breach of the duty to report neglect and abuse by Plaintiff’s parents was the proximate of Cox’s sexual abuse of Plaintiff. In other words, Defendant contends a mandated report of child abuse concerning Plaintiff’s parents might have caused other independent actors, including social workers and judicial officers, to exercise their discretion in a way that would have stopped Cox from sexually abusing Plaintiff even though the mandated report was not related to Cox’s sexual abuse. Defendant further argues the discretionary decisions of a social worker and/or the courts effectively break the chain such that proximate cause cannot be established under the authorities above.

The first cause of action is brought for violations of Penal Code section 11166.5, which requires mandated reporters to sign a statement as a prerequisite to employment acknowledging their responsibilities to report suspected abuse and neglect under CANRA. (Pen. Code, §11166.5, subd. (a).) Defendant argues its employees’ failure to sign such a document cannot plausibly constitute the proximate

cause of the sexual abuse Plaintiff suffered. Defendant argues this is akin to claiming the failure to sign a DMV handbook acknowledgement when obtaining a driver's license caused a car accident.

In opposition, Plaintiff argues 50 years of case law provides failure to report reasonably suspected abuse or neglect in accordance with CANRA has repeatedly been recognized as proximate cause of subsequent neglect and abuse. One such case provided:

If the risk of a resumption of physical abuse is thus a principal reason why a doctor's failure to diagnose and treat the battered child syndrome constitutes negligence, under section 449 of the Restatement the fact that the risk eventuates does not relieve him of responsibility.

Accordingly, the trial court in the case at bar could not properly rule as a matter of law that the defendants' negligence was not the proximate cause of plaintiff's injuries. Plaintiff is entitled to prove by expert testimony that defendants should reasonably have foreseen that her caretakers were likely to resume their physical abuse and inflict further injuries on her if she were returned directly to their custody.

(*Landeros v. Flood* (1976) 17 Cal.3d 399, 412.)

In *Alejo v. City of Alhambra* (1999) 75 Cal.App.4th 1180 (disapproved in part as discussed below in *B.H.*, *supra*, 62 Cal.4th 168), the three-year-old plaintiff alleged his father reported to police suspicions that the child's mother and/or her boyfriend were abusing the child. (*Id.* at p. 1183.) The police failed to conduct any investigation into the allegations, prepare an internal report, or cross-report the matter to other governmental agencies. (*Id.* at pp. 1183-1184.) Six weeks later, the mother's boyfriend severely beat the child, causing total and permanent disability. (*Id.* at p. 1184.)

The city demurred on grounds its police departments and officers had no special duty to protect the child from abuse, the reporting and investigation was a discretionary function, the department and officers were immune, and their failure to act did not cause the injuries. (*Alejo, supra*, 75 Cal.App.4th at p. 1184.)

The Court of Appeal held the complaint stated a cause of action under the doctrine of negligence per se based on CANRA. (*Alejo, supra*, 75 Cal.App.4th at p. 1184.) CANRA creates a special duty of mandated reporters to investigate child abuse, and to take further action when an objectively reasonable person in the same situation would suspect child abuse. (*Id.* at p. 1186.) The duty to investigate is mandatory. (*Id.* at pp. 1186-1187.) The Court found the case analogous to *Landeros*: "In our view, a physician's statutory duty to report when it 'appears' to her a child has been subjected to abuse and a police officer's statutory duty to report when she 'reasonably suspects' a child has been subjected to abuse

are not rationally distinguishable for purposes of imposing liability under the negligence per se doctrine.

(*Id.* at p. 1188, citing *Landeros, supra*, 17 Cal.3d at p. 407.)

As relevant here, the Court rejected the city’s argument that proximate cause was inadequately pled. “Causation is a question of fact...” (*Alejo, supra*, 75 Cal.App.4th at p. 1189.)

Here, it is indisputable that the mandatory duty to investigate and report accounts of child abuse was intended to ‘protect children from child abuse.’ (§ 11164, subd. (a).) The complaint in the case before us alleges that despite Hector's account of Alec's abuse, Officer Doe performed no investigation and made no report and, as a result, Alec suffered further abuse. Therefore, the necessary linkage between the mandatory duty and the injury is established for pleading purposes.

(*Alejo, supra*, 75 Cal.App.4th at p. 1189.)

“Whether a reasonably prudent person receiving Hector's information would suspect child abuse and make a report is a question of fact to be determined at trial. We cannot say from the facts pled in the complaint that as a matter of law no reasonable person could form a suspicion of child abuse.” (*Alejo, supra*, 75 Cal.App.4th at p. 1189.)

In *B.H.*, the California Supreme Court criticized *Alejo* in certain respects. “*Alejo* conflates an officer's mandatory reporting duties with those of an officer investigating a reported instance of alleged child abuse or neglect. It failed to recognize that there is ‘a dichotomy between reporter and reportee, i.e., differentiating between those who make the initial report and the officials who come later’ in performing their investigatory or prosecutorial functions.” (*B.H., supra*, 62 Cal.4th at p. 188.) “Accordingly, section 11166, subdivision (a) only requires mandated reporters to *make* reports if the reporter, in his or her professional capacity or within the scope of his or her employment, knows or reasonably suspects child abuse or neglect. There is no requirement of a follow-up investigation to confirm any suspicions.” (*Ibid.*) The California Supreme Court disapproved this portion of *Alejo*, but noted the Legislature expressly endorsed *Alejo* “to the extent that it allowed such suits in general...” (*Id.* at p. 188, fn. 6.)

In this case, Plaintiff alleges mandated reporters were aware that Plaintiff was being abused by his parents and stepfather, but does not seem to allege that the other mandated reporters were aware of Deputy Cox’s alleged molestation of Plaintiff—although they were aware Plaintiff lived with Deputy Cox. Plaintiff seems to allege if these mandated reporters (excluding Cox himself in the second cause of action but including him in the third cause of action) had properly reported their knowledge of the abuse Plaintiff

suffered at the hands of his parents and stepfather, then the system would have kicked into gear and more likely than not Plaintiff would have ended up in an appropriate placement rather than in Deputy Cox's home. (See, i.e., Complaint, ¶44.)

While it is true that the system is involved and requires other actors (including social workers and the courts) to exercise varying degrees of discretion in determining whether to remove Plaintiff from his parents and stepfather's custody, Plaintiff effectively alleges that he was subject to such clear abuse that he clearly would have been removed to an appropriate placement which would *not* have been with Deputy Cox. One may question how Plaintiff ended up living with Deputy Cox and whether such placement may have been made even if the required reports were made, but Plaintiff alleges that would not have happened. Notwithstanding the intervening actors involved in the process, the *Landeros* decision and particularly the *Alejo* decision (notwithstanding disapproval on other grounds in *B.H.*) seem to support a finding that this claim can survive a pleading challenge.

Nevertheless, the first cause of action seems premised solely on Defendant's alleged failure to require its mandated reporter employees to sign required paperwork notifying them of their obligations under Penal Code section 11166.5. While the general failure to report the abuse is adequately pled, a cause of action premised solely on failure to require such paperwork be signed is a stretch. Plaintiff can still incorporate that allegation into his other causes of action by trying to show part of the reason the mandated reporter employees failed to report suspected abuse was because they were unaware of their obligations, but a separate cause of action is unnecessary. Therefore, the Court sustains the demurrer to the first cause of action without leave to amend but overrules the demurrer to the second and third causes of action.

Fourth cause of action for negligence and fifth cause of action for negligent hiring, retention, and supervision. Plaintiff alleges Defendant is directly liable due to the special relationship it had with Plaintiff and vicariously liable for its employees' failure to reasonably supervise its employees and abide by and enforce policies to protect children from childhood sexual assault. Deputies and employees other than Cox failed to protect Plaintiff from Cox in light of concerning and improper behavior that was suspicious such as isolating Plaintiff without supervision and taking Plaintiff to live in his home. Defendants had a duty but negligently failed to enact, implement, abide by and enforce and train its employees and staff in proper and adequate policies and procedures to protect minor Explorer participants

from the possibility of childhood sexual abuse. This failure allowed Deputy Cox to house Plaintiff at his personal residence, isolating him and making him a foreseeable victim. (Complaint, ¶¶62-73.)

“A plaintiff in any negligence suit must demonstrate “a legal duty to use due care, a breach of such legal duty, and [that] the breach [is] the proximate or legal cause of the resulting injury.”

[Citations.]” (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.)

There is no general rule to protect others from the conduct of third parties, but an exception exists when a person is in a “special relationship” with the victim or person who created the harm. (*Roe v. Hesperia Unified School Dist.* (2022) 85 Cal.App.5th 13, 25.) Defendant does not dispute it had a special relationship with Plaintiff by virtue of his participation in the Explorer Program. Defendant analogizes its duty to that of a school district, which “is liable ‘for the negligence of supervisory or administrative personnel who allegedly knew, or should have known,’ of the foreseeable risk to students of sexual abuse by an employee and nevertheless hired, retained, and/or inadequately supervised that employee. [Citation.]” (*D.Z. v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 210, 223.)

Defendant argues the complaint fails to state facts supporting an inference that any employee knew, should have known, or had reason to know that Cox’s status as an advisor to the Explorer Program would have exposed Plaintiff or any member of the Program to a risk of sexual abuse.

Plaintiff alleges Defendant’s employees were aware that Cox had taken Plaintiff in to live with him. Perhaps a police officer taking in a troubled youth is common, but the complaint alleges that alone was a sign of danger. Whether or not this was appropriate or should have clued in other employees to the possibility of molestation is an issue of fact that requires further development and is not amenable to resolution at the pleading stage. Therefore, the Court overrules the demurrer to the fourth and fifth causes of action.

RULING

For all the reasons stated above, the Court rules as follows:

1. Sustains the demurrer to the first cause of action without leave to amend; and
2. Overrules the demurrer to the second through fifth causes of action.

